

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO
Law and Motion Calendar
Honorable Nicole S. Healy
800 N. Humboldt Street, San Mateo CA 94401
Department 28, Courtroom I
Wednesday July 8, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept28@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5128 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

EVERYONE APPEARING BY ZOOM MUST USE A CAMERA

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 226 9361 Password: 289347

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

02:00 PM **LINE 1**

21-CIV-02564

PEARL WU, MD, ET AL VS. THE PERMANENTE MEDICAL GROUP, INC.

PEARL WU
THE PERMANENTE MEDICAL GROUP, INC.

TIMOTHY C. TRAVELSTEAD
SPENCER DAVIDSON

Motion to be Relieved as Plaintiff's Counsel (Travelstead)

TENTATIVE RULING:

As an initial matter, pursuant to California Rules of Court, rule 3.1362(a), a motion to be relieved as counsel must be made on Judicial Council Form MC-051 and be accompanied by a declaration on Form MC-052 which states, generally, the reasons why the motion is being brought. (Cal. Rules of Court, rules 3.1362(a) and (c).) Plaintiff's counsel has not used these mandatory forms. Plaintiff's counsel shall file the appropriate forms.

More substantively, Dr. Wu has resisted her counsel's effort to withdraw given the impending five-year deadline (see Code Civ. Proc., § 583.310) which expires on August 24, 2026, and the likelihood of prejudice to Dr. Wu. She has contacted a number of attorneys, all of whom have declined to substitute into this case given these considerations.

At this late stage — with trial set to begin later this month — the court is extremely reluctant to permit plaintiff's counsel to withdraw without their client having retained substitute counsel. Moreover, although the court can hear from plaintiff's counsel *in camera* regarding their claim to have a conflict of interest with Dr. Wu (see *Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1136), hearing otherwise privileged or confidential information creates a very awkward situation for the trial judge regardless of who represents Dr. Wu at trial. Accordingly, the court has determined that another judge should hear from plaintiff and plaintiff's current counsel, *in camera*, and report back to this court as to whether an unwaivable ethical conflict exists, and if so, whether that judge recommends that plaintiff's counsel should be permitted to withdraw.

The Honorable David Silberman, in Department 11, has agreed to hear this *in camera* motion. If Judge Silberman reports that such a conflict exists and recommends that plaintiff's current counsel be permitted to withdraw, this court will then set a deadline for a date on which Dr. Wu will advise the court and defendant's counsel that she has obtained substitute representation or that she will represent herself. Any continuance of the trial and extension of the five year statute (see Code Civ. Proc., § 583.304, subd. (c)), will be limited to between three and six months.

Plaintiff and her counsel are ordered to contact Department 11 at dept11@sanmateocourt.org to arrange the *in camera* hearing.

02:00 PM LINE 2

22-CIV-03747

HH HOLDING GLOBAL CO., LTD VS. DAN F. SILVEIRA

HH HOLDING GLOBAL CO., LTD
DAN F. SILVEIRA

ELISE M. BALGLEY
MARK K. SLATER

Defense Motion for Entry of Judgment (CCP 664.6) or in the Alternative, Request to Set for Trial

TENTATIVE RULING:

The Motion to Enter Judgment Pursuant to Code of Civil Procedure Section 664.6 by defendant and cross-complainant Dan F. Silveira is **DENIED**. The court **GRANTS** defendant's alternative request to set this matter for trial.

On a motion under Code of Civil Procedure, section 664.6, the court must determine whether the parties entered into a valid and binding settlement. (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182.) "A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms." (*Ibid.*) The court may consider the parties' declarations and other evidence in deciding what terms the parties agreed to. (*Ibid.*) If the court finds that the parties entered into an enforceable settlement, then the court should grant the motion and enter a formal judgment pursuant to the terms of the settlement. (*Id.*, at pp. 1182-1183.) However, while the court may receive evidence, determine disputed facts and enter the terms of a settlement agreement as a judgment, nothing in section 664.6 authorizes a judge to create the material terms of a settlement as opposed to deciding what terms the parties themselves previously agreed. (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 790.)

On April 29, 2026, the parties appeared before the court and recited the terms of the settlement agreement orally on the record. (Slater Decl., exh. A, Court Transcript from April 29, 2026 hearing.) The stated terms were that plaintiff would pay defendant \$300,000, there would be a full mutual 1542 release, additional language would be added as necessary to release the Labor Code claims, and no confidentiality provision. (*Id.*, at pp. 5-6.) The parties would also enter into a written settlement agreement. (*Id.*, at p. 7.)

The parties now disagree about whether they reached an agreement on the material terms of the settlement. Defendant contends that everything stated orally on the record before the court constitutes the material terms of the settlement. Plaintiff however, claims that he believed the photographs and videos obtained during defendant's claimed work for cross-defendants would be returned as part of the settlement.

As set forth above, the court may receive evidence and determine disputed facts in ruling on this Motion. Plaintiff's declaration supports that he believed the photographs and videos during defendant's employment would be returned as part of the settlement, although it appears that this issue was not discussed at the settlement conference. (See Jin Decl., and exhs. 1-2.) On June 30, 2026, defendant has submitted an unsigned "proposed" supplemental declaration stating

“¶ 4. I do not intend to use any photographs, videos, GPS data, dive-location information, or other materials obtained from the SD card returned in February 2025 for any commercial purpose. ¶ 5. I have not sold, transferred, or licensed any information from the SD card returned in February 2025 to any third party for commercial purposes and will not do.” If a signed version of the declaration would resolve the dispute, then plaintiff is directed to so advise the court.

If the proposed declaration does not resolve the parties’ dispute over the settlement terms, a trial setting conference is set for July 22, 2026 at 9:00 a.m.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 3**

23-CIV-05486

GERARDO LOPEZ, ET AL VS. PATRICIA PFEIFFER BEEBE

GERARDO LOPEZ
PATRICIA PFEIFFER BEEBE

DELANEY L. MILLER
TYRA M. MENDEZ

Plaintiff's Motion to be Relieved as Counsel (Gerardo Lopez)

TENTATIVE RULING:

The unopposed motion of Windsor Troy Law, LLP to be relieved as counsel of record for plaintiff Gerardo Lopez is **GRANTED**.

02:00 PM **LINE 3**

23-CIV-05486

GERARDO LOPEZ, ET AL VS. PATRICIA PFEIFFER BEEBE

GERARDO LOPEZ
PATRICIA PFEIFFER BEEBE

DELANEY L. MILLER
TYRA M. MENDEZ

Plaintiff's Motion to be Relieved as Counsel (Lesly Lopez)

TENTATIVE RULING:

The unopposed motion of Windsor Troy Law, LLP to be relieved as counsel of record for plaintiff Lesly Lopez is **GRANTED**.

02:00 PM **LINE 4**

24-CIV-08047

MEZZETTI FINANCIAL SERVICES, INC. VS. WE ARE THE PEOPLE, INC., ET AL

MEZZETTI FINANCIAL SERVICES, INC.
WE ARE THE PEOPLE, INC.,

LESLIE A. HOLMES

Defense Demurrer to Complaint

TENTATIVE RULING:

The court has construed the demurrer filed by defendant Gail Wilkerson as a Motion for Judgment on the Pleadings. The Motion for Judgment on the Pleadings is **GRANTED with leave to amend**.

Plaintiff Mezzetti Financial Services, Inc. must file any amended complaint within ten (10) days of notice of entry of the formal order.

A. Wilkerson Cannot File any Papers on Behalf of We Are the People, Inc.

As a preliminary matter, the demurrer and motion to strike were filed by defendant Gail Wilkerson on behalf of herself and her corporate co-defendant We Are The People, Inc. (People). A corporation must be represented by an attorney and cannot represent itself in court either as a self-represented litigant or through an officer or agent who is not an attorney. (See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1135.) A non-attorney filing or appearing on behalf of a corporation “would be engaged in the unlicensed practice of law.” (*Id.*, at p. 1146; see Bus. & Prof. Code, § 6125.) Such behavior is punishable as contempt of court. (Bus. & Prof. Code, § 6127, subd. (a).)

Accordingly, the court, on its own motion, strikes from the demurrer and motion all requests for relief made on behalf of People, pursuant to Code of Civil Procedure section 436, subdivision (b). Wilkerson shall not file any paper or appear on behalf of People while not licensed to practice law by the State Bar of California under penalty of contempt.

B. The Demurrer is Untimely and No Meet and Confer Took Place

As another preliminary matter, the demurrer is untimely. A demurrer to an initial complaint must be filed within thirty days of service of the complaint. (Code Civ. Proc., § 430.40, subd. (a).) Service was effected on Wilkerson no later than January 9, 2025. (See May 7, 2025 Proof of Service.) Accordingly, any demurrer was required to be filed on or before February 17, 2025. The instant demurrer is late by more than a year. (See Feb. 21, 2026 Demurrer.) Moreover, People is in default and even if it were represented by counsel cannot file

any papers or otherwise appear in court. Any request to vacate the default entered on May 7, 2025 would be untimely.

Nevertheless, “[t]he name of a motion is not controlling” (*City of Santa Maria v. Adam* (2019) 43 Cal.App.5th 152, 162), and the demurrer could be construed as a motion for judgment on the pleadings — “[d]emurrers and motions for judgment on the pleadings are functionally equivalent.” (*Beames v. City of Visalia* (2019) 43 Cal.App.5th 741, 786).

However, both demurrers and motions for judgment on the pleadings require the party objecting to the complaint to meet and confer in person, by telephone, or by video conference with the plaintiff and make a serious attempt at resolving the issues to be raised by the demurrer or motion. (Code Civ. Proc., § 430.41, subd. (a), § 439, subd. (a).) “As part of the meet and confer process, the demurring [or moving] party shall identify all of the specific causes of action that it believes are subject to demurrer [or motion for judgment on the pleadings] and identify with legal support the basis of the deficiencies. The party who filed the complaint ... shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint ... could be amended to cure any legal insufficiency.” (*Id.*, at § 430.41, subd. (a)(1); cf. *id.*, § 439, subd. (a)(1).) The demurring or moving party must then file a declaration under penalty of perjury proving that this process was completed. (*Id.*, at § 430.41, subd. (a)(3), § 439, subd. (a)(3).)

Wilkerson has not shown that she has complied with this requirement. While an insufficient meet-and-confer process is not grounds to rule on the merits of a demurrer or motion for judgment on the pleadings, “trial courts are not required to ignore defects in the meet and confer process.” (*Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 356.) Notwithstanding this defect, the court rules on what it construes to be a motion for judgment on the pleadings.

Going forward, Wilkerson is cautioned that she must comply with all meet-and-confer obligations.

C. Wilkerson’s Motion for Judgment on the Pleadings is Granted with Leave to Amend

A motion for judgment on the pleadings has the same function as a general demurrer, but is made after the time for demurrer has expired. Except as provided by Code of Civil Procedure, section 438, the rules governing demurrers apply. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) The grounds for judgment on the pleadings must appear on the face of the challenged pleading or be based on facts the court may judicially notice. (Code Civ. Proc., § 438, subd. (d); *Tung v. Chicago Title Co.* (2021) 63 Cal.App.5th 734, 758-759.) A motion for judgment on the pleadings assumes that all facts pleaded in the complaint are true, no matter how improbable. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591; *CrossTalk Productions, Inc. v. Jacobson* (1998) 65 Cal.App.4th 631, 635.)

Wilkerson contends that plaintiff Mezzetti Financial Services, Inc. lacks standing because it has neither sufficiently alleged or proven it is the real party in interest as to the sole cause of action for breach of contract. The Complaint alleges that the lease agreement was entered into by “1735-1755 East Bayshore Partners and We Are The People, Inc., and Gail Wilkerson.” (Dec. 17, 2024, Complaint, § BC-1.) Mezzetti is not alleged to be party to the contract. Instead, the Complaint alleges Mezzetti “is the Assignee of Beals Martin and Associates, Inc., Authorized Agent of 1735–1755 East Bayshore Partners.” (*Id.*, § 9.)

“A cause of action is assignable by its owner if it arises out of a legal obligation or a violation of a property right.” (*Arabia v. BAC Home Loans Servicing, L.P.* (2012) 208 Cal.App.4th 462, 472, citing Civ. Code, § 954.) “With the exception of causes of action of a personal nature, such as injuries arising out of tort, a cause of action is assignable.” (*Ibid.*) It is elementary that a cause of action may be assigned to another only by the owner of that cause of action. At trial, “[t]he burden of proving an assignment falls upon the party asserting rights thereunder. [citations] In an action by an assignee to enforce an assigned right, the evidence must not only be sufficient to establish the fact of assignment when that fact is in issue [citation], but the measure of sufficiency requires that the evidence of assignment be clear and positive to protect an obligor from any further claim by the primary obligee.” (*Cockerell v. Title Insurance & Trust Co.* (1954) 42 Cal.2d 284, 292, citations omitted.) Accordingly, at the pleading stage, an assignee must plead at least the ultimate facts showing it has been assigned the cause of action by the preceding owner.

Here, the Complaint alleges that Beals Martin and Associates, Inc. assigned the cause of action. However, while the Complaint alleges that Beals Martin was the authorized agent of the lessor, it does not allege or otherwise indicate that Beals Martin was the owner of the cause of action for breach of contract such that it could assign that cause of action to Mezzetti. Accordingly, the Complaint’s allegations do not sufficiently show that the lessor (1735-1755 East Bayshore Partners) assigned its cause of action to its agent, Beals Martin, which then assigned the cause of action to Mezzetti.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Wilkerson shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 5**

24-CLJ-01117

WELLS FARGO BANK, N.A. VS. HYUN CHO

WELLS FARGO BANK, N.A.
HYUN CHO

HARLAN M. REESE
DENNIS SMITH/PHILIP GREEN

Defense Motion to be Relieved as Counsel

TENTATIVE RULING:

The unopposed motion of Philip Green to be relieved as counsel of record for defendant Huyn Cho is denied without prejudice. Plaintiff has not offered sufficient proof that the moving papers were served in compliance with California Rules of Court, rule 3.1362(d). The proof of service only reflects service of the Notice of Motion. There is no proof that the Green declaration and the proposed order were served on plaintiff and defendant.

With respect to the Notice of Hearing, the proof of service indicates it was served on defendant on February 24, 2026, but it does not say how the service was accomplished. Defendant's mailing address is provided, but it does not state all the information required for proof of mail service under Code of Civil Procedure, section 1013a. Similarly, the proof of service indicates plaintiff was served electronically through the California Electronic Case Filing System. Neither the declarant nor the plaintiff's electronic service address is stated as required by Code of Civil Procedure, section 1013b.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 6**

25-CIV-03556

DOMINIC HIGBEE-GONSALVES VS. ISHAR INVESTMENTS, INC.et al.

DOMINIC HIGBEE-GONSALVES
ISHAR INVESTMENTS, INC.

IRINA BAGHDASARYAN
BRENDAN SAPIEN

Motion to Compel Deposition of Defendant's Person Most Knowledgeable

TENTATIVE RULING:

Plaintiff Dominic Higbee-Gonsalves' motion to compel PMK deposition is **GRANTED**. Plaintiff's request for sanctions against defendant Ishar Investments, Inc., and its attorney of record, O'Hagan Meyer LLP, is also **GRANTED**.

A. Background

On August 1, 2025, plaintiff served defendant Ishar Investments, Inc., with a Notice of PMK Deposition, set for October 31, 2025. (Begakis Decl., ¶ 2, exh. A.) On October 21, 2025, plaintiff's counsel emailed defendant's counsel to confirm that the PMK deposition would go forward as noticed. (Id., ¶ 3, exh. B.) Plaintiff's email included an offer that the deposition could be moved to a date within 30 days of the scheduled date, if requested within three days. (*Ibid.*)

On October 29, 2025, plaintiff's counsel followed up on the courtesy email reminder and Defense counsel responding by stating that his client was unavailable and that he would provide potential alternative dates shortly. (Begakis Decl., ¶ 4, exh. C.) Plaintiff's counsel responded by stating that no timely objections had been made and that if new dates were not sent by the next day, plaintiff would move forward with the deposition and take a non-appearance. (*Ibid.*)

On October 30, 2025, at 5:00 p.m., plaintiff's counsel emailed defendant's counsel following up on the request for deposition dates. (Begakis Decl., ¶ 4, exh. C.) On October 31, 2025, defendant's counsel responded: "I will be getting you deposition dates by next week." (*Ibid.*) Plaintiff proceeded with the deposition and took a non-appearance. (*Id.*, exh. D.)

On December 5, 2025, defendant sent a formal meet and confer letter to plaintiff regarding defendant's failure to appear and failure to provide firm dates for the PMK deposition. (*Id.*, ¶ 6, exh. E.)

On December 19, 2025, plaintiff filed a motion to compel the PMK deposition. (Liu Decl., ¶ 2.) The motion was ordered off the calendar so that the parties could engage in an Informal Discovery Conference on the matter. (*Ibid.*) At the IDC hearing on February 3, 2026, the Commissioner recommended that the PMK deposition take place within four weeks and authorized plaintiff to file a motion to compel. (*Id.*, ¶ 3, exh. G.)

On February 10, 2026, plaintiff's counsel sent defendant's counsel a letter summarizing the Commissioner's recommendation and asking for proposed dates – to be provided by February 13, 2026 – for the deposition to be held on or before March 3, 2026. (Liu Decl., ¶ 4, exh. H.) On February 22, 2026, plaintiff filed the instant motion, having received no response from defendant. (Liu Decl., ¶ 5.)

B. Legal Standards

“Any party may obtain discovery . . . by taking in California the oral deposition of any person, including any party to the action.” (Code Civ. Proc., § 2025.010.) The service of a deposition notice “is effective to require any deponent who is a party to the action . . . to attend and to testify, as well as to produce any document . . . for inspection and copying.” (*Id.*, § 2025.280, subd. (a).) A party may move for a court order compelling a deponent's attendance and testimony if the deponent fails to appear for their deposition. (*Id.*, § 2025.450, subd. (a).) In such cases, the motion must be accompanied “by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (*Id.*, subd. (d); *Leko v. Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th 1109, 1124.)

Under Code of Civil Procedure, section 2025.450, a person who fails to appear for their deposition may be subject to monetary sanctions, provided the court does not find that the party subject to sanctions acted with substantial justification. (*Id.*, subd. (g).)

Defendant argues that the motion is moot because defendant has agreed to produce a PMK witness. Defendant misses the point. Defendant failed to appear at a duly noticed deposition and, based on the record before the court, has repeatedly failed to provide dates for which the deposition could be held. The deposition has still not taken place. This motion is not moot.

Defendant's counsel argues that he was substituted as counsel in “September of 2025” and that he was “getting up to speed in this matter” and had “informed Plaintiff of the need for additional time to review this matter and . . . prepare for the deposition of Defendant's PMK.” (Sapient Decl., ¶¶ 3, 5, 6.) A substitution of attorney regarding current defense counsel was filed on September 10, 2025 – 51 days prior to the scheduled deposition date. (See Substitution of Counsel, filed September 10, 2025.)

While it is understandable that defendant's counsel wanted more time to prepare for the deposition, it is unclear whether counsel ever made such a request to plaintiff. Defendant's counsel states that he informed plaintiff's counsel of the need for more time but does not provide any details regarding that correspondence or when it occurred – and counsel does not specifically state that he ever requested that the deposition date be moved back. Moreover, on October 21, 2025, plaintiff expressly offered via email to re-notice a later deposition date if necessary:

[W]e are amenable to re-noticing the deposition to a new date provided your client offers availability within 30 days of the originally noticed date. If you wish to pursue this option, please provide your client's availability within the next three (3) business days.

(Begakis Decl., ¶ 3, exh. B.)

It appears that defendant's counsel never responded to that offer. Still, on October 29, 2025, after defendant's counsel informed plaintiff's counsel that his client was not available for the PMK deposition, plaintiff's counsel asked that defense counsel provide dates of availability by the following day. Defense counsel failed to do so, even after plaintiff sent a follow-up e-mail at the close of business the next day. Defense counsel informed plaintiff's counsel the morning of the deposition, "I will be getting you deposition dates by next week." (*Id.*, exh. C, at p. 1.) He never did. (Begakis Decl., ¶ 4.)

The record before the court does not show that defendant's counsel ever requested that the deposition date be continued. Rather, the record shows that defendant's counsel had numerous opportunities to propose alternative dates — both before and after the originally noticed date — and failed to do so. Defendant has not provided any reason why this motion to compel should be denied.

Plaintiff requests sanctions totaling \$7,020.00 against defendant Ishar Investments, Inc. and its counsel of record, O'Hagan Meyer LLP, jointly and severally, comprising:

- \$620.00 for the court reporter's wasted attendance and Certificate of Non-Appearance;
- \$3,250.00 for the work of Christina Begakis, Esq., representing 5.0 hours at a billing rate of \$650.00 per hour, which includes preparing for and attending the remote deposition on October 31, 2025, drafting the initial meet-and-confer correspondence, and drafting the initial motion to compel; and
- \$3,150.00 for the work of Junlin Liu, Esq., representing 7.0 hours at a billing rate of \$450.00 per hour, including 1.5 hours preparing the written brief for and attending the February 3, 2026 Informal Discovery Conference; 0.5 hours drafting the post-IDC meet-and-confer correspondence sent on February 10, 2026; 3.0 hours updating, revising, and finalizing this Motion to Compel, the Memorandum of Points and Authorities, and the supporting declarations; and 2.0 hours anticipated to review Defendant's opposition, draft a reply brief, and attend the Law and Motion hearing.

(See Begakis Decl., ¶ 7; Liu Decl., ¶ 6.)

Defendant argues that request for sanctions is "inflated." However, defendant has provided no basis for that argument, other than to point out that the original motion — before the IDC — requested \$3,870.00 in sanctions. This argument is not compelling. Obviously, the IDC and subsequent revised motion to compel would not have been necessary had defendant provided dates for the deposition to take place.

Plaintiff's request for sanctions is reasonable. (*Spencer v. Collins* (1909) 156 Cal. 298, 307 ["The value of attorney's services is a matter with which a judge must necessarily be

familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”].)

Accordingly, plaintiffs’ motion to compel is **GRANTED**. Upon serving all parties with notice of the order on this motion, or thereafter, plaintiff may serve a notice for the PMK deposition previously scheduled for October 31, 2026.

Plaintiff’s request for sanctions is **GRANTED** in the amount of \$7,020.00 against defendant Ishar Investments, Inc., and O’Hagen Meyer LLP, jointly and severally, to be paid to Dominic Higbee-Gonsalves within ten (10) days of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 7**

25-CIV-08271

KIRSTEN BOLLEN ARPAJIAN VS. SCOTT LOEWEN ARPAJIAN

KIRSTEN BOLLEN ARPAJIAN
SCOTT LOEWEN ARPAJIAN

ETHAN M. WEISINGER
LUIS M MONTES

Motion re California Court's Jurisdiction re Spanish Divorce Decree

TENTATIVE RULING:

Petitioner Kristen Bollen Arpajian's petition to domesticate the Barcelona divorce decree is **DENIED without prejudice**. As noted below, the court will enforce orders issued by the court in Barcelona if requested by that court pursuant to appropriate international legal assistance requests.

Specially-appearing respondent Scott Arpajian seeks judicial notice of certain documents filed in this court and the court in Barcelona pursuant to Evidence Code, sections 452, subdivisions (d) and (h), 453, and 1530, subdivision (a)(1). Where the original documents were in Spanish, respondent has supplied English-language translations. Petitioner has not opposed the request. Accordingly, respondent's request is **GRANTED in part**. The court takes judicial notice of exhibits A-D, F-G, K, M (Barcelona court's orders); E (San Mateo Superior Court ruling); H-J (parties' filings in Barcelona court).

The court takes judicial notice of the legal effect of the Barcelona court's orders. The court takes judicial notice of the fact that exhibits H-J were filed by the parties with the Barcelona court, but they are not noticed for the truth of the contents therein. The court does not take judicial notice of exhibit L, the "Legal Report of Respondent's Spanish legal counsel Carolina Cendros Camara."

Petitioner Kristen Arpajian and specially-appearing respondent Scott Arpajian were married in San Francisco in 2002 and divorced in Spain in 2022. Neither party disputes that their divorce decree was issued by a court of competent jurisdiction in Barcelona, Spain. Nor does there appear to be any dispute that Mr. Arpajian has lived in Spain for many years. The proof of service filed by Ms. Arpajian indicates that Mr. Arpajian was personally served with the petition in this matter in Barcelona. Neither party has addressed whether he has had sufficient contacts with California to permit the court to exercise personal jurisdiction over him for purposes of this petition.

Petitioner asks this court to "domesticate" their divorce decree; respondent opposes. The court asked the parties for briefing regarding this court's jurisdiction over the Spanish divorce decree.

Petitioner argues that the “Uniform Foreign-Country Money Judgments Recognition Act,” Code of Civil Procedure, sections 1713, et seq., authorize this court to domesticate and enforce the Spanish judgment. In a “domestication” action, the petitioner seeks “entry of a California judgment for the amount of the foreign judgment.” (*Manco Contracting Co. (W.L.L.) v. Bezdikian* (2008) 45 Cal.4th 192, 208 (*Manco*)). A domesticated judgment gives the judgment creditor access to the full range of enforcement procedures available under California law. (See *ibid.*)

Code of Civil Procedure, section 1715, subdivision (a) provides that “[t]his chapter applies to a foreign-country judgment to the extent that the judgment both: (1) Grants or denies recovery of a sum of money. (2) Under the law of the foreign country where rendered, is final, conclusive, and enforceable.” Subdivision (b) provides that “(b) This chapter does not apply to a foreign-country judgment, even if the judgment grants or denies recovery of a sum of money, to the extent that the judgment is any of the following: * * * (3)(A) A judgment for divorce, support, or maintenance, or other judgment rendered in connection with domestic relations.” However, “[a] judgment for divorce, support, or maintenance, or other judgment rendered in connection with domestic relations may be recognized by a court of this state pursuant to Section 1723.” (*Id.*, § subd. (3)(B).) The burden is on the proponent to establish that the judgment is entitled to recognition. (*Id.*, § subd. (c).) Section 1723 provides that “[t]his chapter does not prevent the recognition under principles of comity or otherwise of a foreign-country judgment not within the scope of this chapter.” Instead, “[c]omity remains the basis for recognizing foreign judgments not covered by the [Uniform Foreign Money–Judgments Recognition Act (UFMJRA)], such as domestic relations judgments.” (*Manco, supra*, 45 Cal.4th a p. 198, citing Code Civ. Proc., §§ 1715, subd. (b)(3), 1723.)

Although not addressed in petitioner’s brief, respondent notes in his brief, and the attached exhibits show that the Barcelona court issued an order on December 2, 2025 (Resp. RJN, exh. K), which affirmed an October 27, 2025 order (*id.*, exh. M) enforcing a portion of the divorce award. Specifically, the Barcelona court ordered petitioner Kristen Arpajian to pay to respondent Scott Arpajian €255,000 and to release Scott Arpajian from a mortgage on a ranch the parties had jointly owned in California. (The October 27, 2025 order refers to \$255,000 plus \$75,000 as security for interest payments; the December 2, 2025 order refers to €255,000.) The Barcelona court further stated that any appeal had to be filed with the provincial court within twenty days following the date of service. Neither party has advised the court whether any appeal is pending.

That the Barcelona court is continuing to exercise jurisdiction over enforcement of the parties’ divorce decree demonstrates that this court should not exercise jurisdiction in this matter, even assuming that petitioner could demonstrate that respondent had sufficient minimum contacts with California to permit the court to exercise personal jurisdiction over Mr. Arpajian. The court is particularly concerned not to interfere with the Barcelona court’s jurisdiction as to enforcement actions.

However, if the court in Barcelona requires the assistance of this court, this court will comply with any appropriate request. This court presumes that the Barcelona court will avail itself of international legal assistance procedures either through a Letter of Request pursuant to

the Hague Evidence Convention (Convention of 18 March 1970 on the Taking of Evidence Abroad in Civil or Commercial Matters), or letters rogatory as appropriate. Otherwise, this court declines to insert itself into a matter that appears to be under the continuing jurisdiction of a foreign court.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Scott Arpajian's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 8**

25-CIV-08668

WEI FANG CHEN , ET AL VS. DAKSH CHAPLOT, ET AL

WEI FANG CHEN
DAKSH CHAPLOT

ROBERT CHEASTY
SHAYNE L. WULTERIN

Defense Motion to Strike Portions of the Complaint

TENTATIVE RULING:

Defendant Hertz Vehicles, LLC's motion has been withdrawn and the matter is therefore **MOOT.**

02:00 PM **LINE 9**

25-CIV-09970

NYA LAVEAU VS. ASN TANFORAN CROSSING II LLC

NYA LAVEAU
ASN TANFORAN CROSSING II LLC

PRO SE
WILLA MANKINS

Defense Demurrer to Plaintiffs Complaint

TENTATIVE RULING:

Defendant ASN Tanforan Crossing II LLC, aka Avalon Bay San Bruno's unopposed Demurrer to plaintiff Nya Laveau's Complaint filed on December 22, 2025 is **SUSTAINED WITH leave to amend** pursuant to Code of Civil Procedure, section 430.10 subdivisions (e) & (f).

If plaintiff intends to file a First Amended Complaint, she must do so within ten (10) days of notice of entry of this order.

Plaintiff in pro per Nya Laveau's initial pleading states that plaintiff "has the burden of proving each essential element of her ANSWER in response to UNLAWFUL DETAINERS filed by DEFENDANT, ASN CROSSING II LLC AKA AVALON BAY SAN BRUNO on 03/21/25 (25-UDL00466), 05/07/25 (25-UDL-00675), and 09/09/25 (25-UDL-01252) ..." (Complaint, at p. 2:7-8.) Based on that language, and the "POINTS OF AUTHORITIES" in the document which addresses issues that appear pertinent to the referenced unlawful detainer actions, it is not clear whether plaintiff may have intended to file an answer or other responsive document in one or both of those cases, or whether the pleading is truly intended to be a complaint. Because the document was filed in initiation of this action, it is a complaint as a matter of legal procedure.

Defendant Tanforan demurs on the grounds that plaintiff has failed to state a cause of action upon which relief can be granted and that the pleading is uncertain.

A special demurrer for uncertainty should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which are to be met. (*People v. Lim* (1941) 18 Cal.2d 872.) A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612.) Here, however, plaintiff's Complaint is not merely ambiguous but is so uncertain as to whether it is even alleging one or more causes of action that defendant cannot reasonably respond.

The special demurrer for uncertainty is accordingly **SUSTAINED with leave to amend** pursuant to Code of Civil Procedure, section 430.10, subdivision 430.10, subdivision (f).

With respect to defendant's general demurrer, plaintiff's Complaint does not articulate any individual causes of action and the underlying facts alleged are couched as being alleged in support of defenses to complaints in other cases.

The general demurrer for failure to state facts sufficient to constitute a cause of action is accordingly **SUSTAINED with leave to amend** pursuant to Code of Civil Procedure, section 430.10, subdivision 430.10, subdivision (e).

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 10**

25-CIV-09970

NYA LAVEAU VS. ASN TANFORAN CROSSING II LLC

NYA LAVEAU
ASN TANFORAN CROSSING II LLC

PRO SE
WILLA MANKINS

Defense Motion to Strike

TENTATIVE RULING:

Defendant ASN Tanforan Crossing II LLC, aka Avalon Bay San Bruno's unopposed Motion to Strike Plaintiff Nya Laveau's Complaint filed December 22, 2025 is **DENIED as MOOT** in light of the tentative ruling sustaining defendant's concurrently filed Demurrer to the same pleading.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.



POSTED: 3:00 PM